



# INDIAN POLITY

## STATE LEGISLATURE (PART-1)

MODULE – 83



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## ORGANISATION OF THE STATE LEGISLATURE

*Articles 168 to 212 in Part VI of the Constitution*



- 1 There is no uniformity in the organisation of state legislatures.

- 2 Most of the states have an unicameral system, while others have a bicameral system.

- 3 In the states having bicameral system, the state legislature consists of the governor, the legislative council and the legislative assembly.

- 4 The legislative council (Vidhan Parishad) is the upper house (second chamber or house of elders), while the legislative assembly (Vidhan Sabha) is the lower house (first chamber or popular house).



## ABOLITION OR CREATION OF LEGISLATIVE COUNCILS IN STATES

1

Constitution provides for the abolition or creation of legislative councils in states.

2

This is done, if the legislative assembly of the concerned state passes a resolution to that effect.

3

The power to create or abolish legislative councils is given to the Parliament.

4

Such a specific resolution must be passed by the state assembly by a special majority.

5

The bill is passed in the Parliament just like an ordinary piece of legislation i.e., by simple majority.

6

This Act of Parliament is not to be deemed as an amendment of the Constitution for the purposes of Article 368.



## ABOLITION OR CREATION OF LEGISLATIVE COUNCILS IN STATES



*There are only 7 states which have two-tier of legislature – Uttar Pradesh, Maharashtra, Bihar, Karnataka, Andhra Pradesh, Telangana and Jammu & Kashmir.*

- ◆ The idea of having a second chamber in the states was criticized in the Constituent Assembly on the ground that it was not representative of the people, that it delayed legislative process and that it was an expensive institution.
- ◆ Consequently the provision was made for the abolition or creation of a legislative council to enable a state to have a second chamber or not according to its own willingness and financial strength.



# STATE LEGISLATURE

## COMPOSITION OF LEGISLATIVE ASSEMBLY

### STRENGTH

- ◆ Directly elected by the people on the basis of universal adult franchise.
- ◆ Maximum strength is fixed at 500 and minimum strength at 60.

### NOMINATED MEMBER

- ◆ The governor can nominate one member from the Anglo-Indian community, if the community is not adequately represented in the assembly.
- ◆ Now, under the 95<sup>th</sup> Amendment Act of 2009, this is to last until 2020.

### TERRITORIAL CONSTITUENCIES

- ◆ For the purpose of holding direct elections to the assembly, each state is divided into territorial constituencies.
- ◆ The demarcation of these constituencies is done in such a manner that the **ratio between the population of each constituency and the number of seats allotted to it is the same throughout the state.**
- ◆ In other words, the Constitution ensures that there is uniformity of representation between different constituencies in the state.



## COMPOSITION OF LEGISLATIVE ASSEMBLY

### READJUSTMENT AFTER EACH CENSUS

- ◆ After each census, a readjustment is to be made in the
  - a) **total number of seats** in the assembly of each state and
  - b) the division of each state into **territorial constituencies**.
- ◆ The **Parliament** is empowered to determine the authority and the manner in which it is to be made.
- ◆ Accordingly, Parliament has enacted the Delimitation Commission Acts in 1952, 1962, 1972 and 2002 for this purpose.

### RESERVATION OF SEATS FOR SCs AND STs

The Constitution provided for the reservation of seats for scheduled castes and scheduled tribes in the assembly of each state on the basis of population ratios.





## COMPOSITION OF LEGISLATIVE COUNCIL

### STRENGTH



- ◆ Unlike the members of the legislative assembly, the members of the legislative council are indirectly elected.
- ◆ The maximum strength of the council is fixed at **one-third of the total strength of the assembly** and the **minimum strength is fixed at 40**.
- ◆ It means that the size of the council depends on the size of the assembly of the concerned state.
- ◆ This is done to ensure the predominance of the directly elected legislative assembly.



# STATE LEGISLATURE

## COMPOSITION OF LEGISLATIVE COUNCIL

### MANNER OF ELECTION

- 1**  $\frac{1}{3}$  are elected by the members of local bodies in the state like municipalities, district boards, etc.
- 2**  $\frac{1}{12}$  are elected by graduates of three years standing and residing within the state,
- 3**  $\frac{1}{12}$  are elected by teachers of three years standing in the state, not lower in standard than secondary school.
- 4**  $\frac{1}{3}$  are elected by the members of the legislative assembly of the state from amongst persons who are not members of the assembly.
- 5** The remainder are nominated by the governor from amongst persons who have a special knowledge or practical experience of literature, science, art, cooperative movement and social service.

*Thus,  $\frac{5}{6}$  of the total number of members of a legislative council are indirectly elected and  $\frac{1}{6}$  are nominated by the governor.*



## DURATION OF ASSEMBLY

- 1 Not a continuing chamber.
- 2 Normal term is five years from the date of its first meeting
- 3 Automatic dissolution of the assembly after 5-years.
- 4 The governor is authorized to dissolve the assembly at any time.
- 5 Term can be extended during the period of national emergency by a law of Parliament for one year at a time.
- 6 This extension cannot continue beyond a period of 6 months after emergency ceases.

## DURATION OF COUNCIL

- 1 It is a continuing chamber.
- 2 One-third of its members retire on the expiration of every second year.
- 3 A member continues as such for 6 years.
- 4 The retiring members are also eligible for re-election and re-nomination any number of times.





### THE COUNCIL CONUNDRUM

#### NEWS REPORT



*There are only seven such Councils.*

- 1 The Odisha Government approved for setting up a Legislative Council in the State.

- 2 The proposed Legislative Council will have 49 members.

- 3 The total number of members in Odisha Assembly is 147.

- 4 As per Article 171 (1) of the Constitution, the total number of members shall not exceed one third of the total number of members in the Legislative Assembly of that State.

- 5 The total number of members in the Legislative Council of a State shall in no case be less than 40.





## **THE COUNCIL CONUNDRUM**

### **WHAT ARE THE CONSTITUTIONAL PROVISIONS?**



*Andhra Pradesh got the Legislative Council created in 1957 and got the same abolished in 1985 and again revived in 2007 and the Legislative Council of Tamil Nadu was abolished in 1986.*

- 1** The Constitution provision provides for the abolition or creation of Legislative Councils in the States.
- 2** The Parliament can abolish a Council or create it, if the Legislative Assembly of the concerned State passes a Resolution with a special majority.
- 3** The Act of Parliament is not to be deemed as amendment to Constitution and is passed with simple majority.



**DYNAMIC PORTION  
OF POLITY**

# STATE LEGISLATURE

## THE COUNCIL CONUNDRUM

### MORE ON VIDHAN PARISHAD OR LEGISLATIVE COUNCIL



**1** There are seven States at present having Legislative Councils

- Andhra Pradesh
- Telangana
- Karnataka
- Maharashtra
- Uttar Pradesh
- Bihar
- Jammu and Kashmir

**2** It is optional to have Vidhan Parishad.



DYNAMIC PORTION  
OF POLITY

# STATE LEGISLATURE

## THE COUNCIL CONUNDRUM

### NATIONAL POLICY IS THE NEED OF THE HOUR!



- 1 Two Bills introduced in the Rajya Sabha in 2013 for establishing Legislative Councils in Assam and Rajasthan are still pending.

- 2 A Parliamentary Committee that went into these Bills cleared the proposals, but struck a cautionary note.

- 3 It wanted a National Policy on having Upper House in State Legislatures. It also favoured a review of the provision of the law for Councils to have seats for graduates and teachers.

***Odisha's proposal is an opportunity to evolve a National consensus on Legislative Councils.***



## DYNAMIC PORTION OF POLITY

### THE COUNCIL CONUNDRUM

#### UPPER HOUSE ...WHY IT IS NOT RELEVANT?



- 1 The Upper House is being used to accommodate party functionaries, who fail to get elected.

- 2 It is also an unnecessary drain on the exchequer.

- 3 Graduates are no longer a rare breed.

- 4 Also, with dipping educational standards, graduate degree is no guarantee of any intellectual calibre.

- 5 There are enough numbers of doctors, teachers and other professionals in most political parties.

*However, it provides a mechanism for a more sober and considered appraisal of Legislation, that a State may pass.*



# STATE LEGISLATURE

## MEMBERSHIP OF STATE LEGISLATURE

### CONSTITUTIONAL QUALIFICATIONS

- 1 He must be a citizen of India.



- 2 He must make and subscribe to an oath or affirmation before the person authorised by the Election Commission for this purpose.
- 3 He must be not less than 30 years of age in the case of the legislative council and not less than 25 years of age in the case of the legislative assembly.
- 4 He must possess other qualifications prescribed by Parliament



# STATE LEGISLATURE

## MEMBERSHIP OF STATE LEGISLATURE

### ADDITIONAL QUALIFICATIONS IN THE REPRESENTATION OF PEOPLE ACT, 1951



- 3 He must be a member of a scheduled caste or scheduled tribe if he wants to contest a seat reserved for them.

- 1 A person to be elected to the legislative council **must be an elector for an assembly constituency in the concerned state** and to be qualified for the governor's nomination, he must be a **resident in the concerned state**.

- 2 A person to be elected to the legislative assembly must be an elector for an assembly constituency in the concerned state.



# STATE LEGISLATURE

## MEMBERSHIP OF STATE LEGISLATURE

### CONSTITUTIONAL DISQUALIFICATIONS

- 1 If he holds any office of profit under the Union or state government (except that of a minister or any other office exempted by state legislature)



- 2 If he is of unsound mind and stands so declared by a court.
- 3 If he is an undischarged insolvent.
- 4 If he is not a citizen of India or has voluntarily acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state.
- 5 If he is so disqualified under any law made by Parliament.



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